

3	24-01431292 <i>Arroyo vs. Swift Debt Relief, Inc.</i>	1) Motion to Compel Production 2) Motion to Compel Production MOTION NO. 1: Plaintiff Brenda Arroyo’s motion to compel defendant Swift Debt Relief Inc. to provide supplemental responses and all documents responsive to Plaintiff’s Requests for Production, Set One, Request Nos. 3-8, 10-30, and 33-34 (ROA 93) is CONTINUED to _____. The rule requiring a good faith effort to meet and confer about discovery disputes “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 Cal.App.4th 1006, 1016.) “A reasonable and good-faith attempt at informal resolution entails something more than bickering . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (<i>Townsend v. Superior Court</i> (1998) 61 Cal. App. 4th 1431, 1439.) In its opposition, Defendant states “[t]he parties can resolve their disputes if Plaintiff’s counsel were to work with Swift’s counsel to reach an agreement about the scope of the Requests and definitions.” (ROA 182, Opp., 7:9-10.) Defendant’s counsel states during a meet and confer call, he explained to Plaintiff’s counsel that he believed the requests were improperly overbroad and that it made more sense for the parties to stipulate to certain definitions or to certain keywords and/or phrases that could assist with the identification of responsive documents. (ROA 186, Bozant Decl., ¶ 12.) Plaintiff’s counsel refused to agree to any such compromise, and instead told Defendant’s counsel that Defendants “should know” exactly what the requests mean based on the allegations in the complaint and the purportedly limited time period Plaintiff worked for Swift. (ROA 186, Bozant Decl., ¶ 12.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties’ attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party’s position on the discovery request that remains in dispute. Plaintiff to give notice. MOTION NO. 2: Plaintiff Brenda Arroyo’s motion to compel defendant Rockspur Financial LLC to provide supplemental response and all documents
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		responsive to Plaintiff’s Requests for Production, Set One, Request Nos. 3-8, 10, and 12-28 (ROA 102) is CONTINUED to _____. In its opposition, Defendant states “Plaintiff’s counsel refused to negotiate with RockSpur’s counsel regarding the overbroad definitions and lack of particularity with the Requests . . . Plaintiff’s counsel could have properly met and conferred with RockSpur’s counsel to address their issues prior to filing the motion to compel. Plaintiff’s counsel’s blatant refusal to make any concessions thwarted the parties’ meet and confer efforts and resulted in Plaintiff’s filing of four separate motions to compel.” (ROA 199, Opp., 7:5-11.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties’ attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party’s position on the discovery request that remains in dispute. Plaintiff to give notice.
6	26-01550934 <i>Interdependence, Inc. vs. Randompod LLC</i>	Demurrer to Complaint Defendant Randompod LLC’s Demurrer to Plaintiff’s Complaint is OVERRULED. <u>Legal Standard:</u> At the pleading stage, the Court must liberally construe the complaint, drawing all reasonable inferences in favor of Plaintiffs’ asserted claims. (<i>Liapes v. Facebook, Inc.</i> (2023) 95 Cal.App.5th 910, 919.) “A demurrer must dispose of an entire cause of action to be sustained. Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability.” (<i>Thompson v. Spitzer</i> (2023) 90 Cal.App.5th 436, 451–452 [cleaned up].) “[C]ourts may not turn a demurrer into a contested evidentiary matter by determining what the proper interpretation of the evidence is. A court errs when its decision reflects such a consideration of the evidence.” (<i>Panterra GP, Inc. v. Superior Court of Kern County</i> (2022) 74 Cal.App.5th 697, 711 [cleaned up].) “A plaintiff is permitted to plead alternative inconsistent theories.” (<i>Dubin v. Robert Newhall Chesebrough Trust</i> (2002) 96 Cal.App.4th 465, 477.) “Pleading alternative theories of recovery “does not run afoul of truthful pleading.” (<i>Panterra GP, Inc. v. Superior Court of Kern County</i> (2022) 74 Cal.App.5th 697, 711, fn. 10.) <u>First Cause of Action – Breach of Contract:</u>